acts Mar. 4, 1909, ch. 321, § 341, 35 Stat. 1153, or Feb. 8, 1894, ch. 25, § 1, 28 Stat. 37. However, the provisions of sections 5508, 5510, 5516, 5518, and 5524–5532 were substantially reenacted by said act Mar. 4, 1909, and are now covered by sections 51, 52, 54–59, 246, 428, and 443-445 of Title 18, Criminal Code and Criminal Procedure.

**§ 55. Aid of military and naval forces.**

It shall be lawful for the President of the United States, or such person as he may empower for that purpose, to employ such part of the land or naval forces of the United States, or of the militia, as may be necessary to aid in the execution of judicial process issued under sections 41–43 or 47–54 of this title, or as shall be necessary to prevent the violation and enforce the due execution of the provisions of sections 41–43, 47–56 of this title. (R. S. § 1989.)

DERIVATION

Acts Apr. 9, 1866, ch. 31, § 9, 14 Stat. 29; May 31, 1870, ch. 114, § 13, 16 Stat. 143.

**§ 56. Peonage abolished.**

The holding of any person to service or labor under the system known as peonage is abolished and forever prohibited in any Territory or State of the United States; and all acts, laws, resolutions, orders, regulations, or usages of any Territory or State, which have heretofore established, maintained, or enforced, or by virtue of which any attempt shall hereafter be made to establish, maintain, or enforce, directly or indirectly, the voluntary or involuntary service or labor of any persons as peons, in liquidation of any debt or obligation, or otherwise, are declared null and void. (R. S. § 1990.)

DERIVATION

Act Mar. 2, 1867, ch. 187, § 1, 14 Stat. 546.

## Chapter 4.—FREEDMEN

Sec.
61. Laws continued in force.
62. Laws enforced by Secretary of War.
63. Claims for pay or bounty; payment.
64. Retained bounty fund; application for payments.
65. Who deemed wife and children of colored soldiers.

**§ 61. Laws continned in force.**

All laws and parts of laws pertaining to the collection and payment of bounty, prize money, and other legitimate claims of colored soldiers, sailors, and marines, or their heirs, shall remain in force until otherwise ordered by Congress. (R. S. § 2032.)

DERIVATION

Act June 10, 1872, ch. 415, § 1, 17 Stat. 366.

CROSS REFERENCES

Claims for pay or bounty for colored soldiers, sailors, or marines and payment thereof, see section 63 of this title.

**§ 62. Laws enforced by Secretary of War.**

The Secretary of War is authorized to carry into effect all laws and parts of laws referred to in section 61 of this title, and to this end he may employ such clerical force as he deems necessary. (R. S. § 2033.)

DERIVATION

Act June 10, 1872, ch. 415, § 1, 17 Stat. 366.

**§ 63. Claims for pay or bounty; payment.**

All sums due upon certificates issued, or which may be issued in settlement of claims for pay, bounty, prize money, or other moneys due to colored soldiers, sailors, or marines, or their legal representatives, shall be paid in the same manner as similar claims are paid to white soldiers, sailors, and marines, but no such certificate shall be issued until it shall have been ascertained that the application is made by the original claimant, or, if he be dead, by his true living legal representative, nor until the identity of such claimant or representative as the case may be, shall have been duly established. If an agent or attorney be employed, the allowance for his services shall not in any case exceed that contemplated in the scale of fees and allowances fixed by joint resolution July 26, 1866, No. 86, § 2, 14 Stat. 368, and no power of attorney, transfer or assignment of the amount of such claims, or any part thereof, shall in any case be recognized. (Mar. 3, 1879, ch. 182, § 2, 20 Stat. 402; Feb. 1, 1888, ch. 4, § 1, 25 Stat. 9; July 1, 1898, ch. 546, 30 Stat. 640.)

**§ 64. Retained bounty fund; application for payments.**

The unexpended balance of the retained fund in the custody of the Freedmen's Bureau prior to July 1, 1902, is covered into the Treasury as "Miscellaneous receipts." Upon application by parties entitled to any portion of the money so covered in, the Secretary of the Treasury is authorized and directed to pay the amount found due in the same manner and from the same appropriation as claims for bounty to volunteer soldiers are now paid. (July 1, 1902, ch. 1351, 32 Stat. 556.)

**§ 65. Who deemed wife and children of colored soldiers.**

In determining who is the wife or child of any colored soldier, within the meaning of this section, sections 61 and 62 of this title, evidence that the soldier and the woman claimed to be his wife cohabited or associated as husband and wife, and so continued to cohabit or associate at the time of enlistment, or evidence that a form of marriage, whether such marriage was authorized or recognized by law or not, was entered into by them, and that the parties thereafter lived together as husband and wife, and so continued to live together at the time of enlistment, shall be deemed sufficient proof of marriage; and the children born of any such marriage shall be taken to be the children embraced within the provisions of said sections whether such marriage was or was not dissolved at the time of the enlistment. (R. S. § 2037.)

DERIVATION

Res. Mar. 3, 1865, No. 29, 13 Stat. 571.

CROSS REFERENCES

Claims for pay or bounty for colored soldiers, sailors, or marines and payment thereof, see section 63 of this title.

## Chapter 5.—ALIEN OWNERSHIP OF LAND

Sec.
71. Lands in Territories.
72. Same; previously acquired lands; bona fide resident aliens; mining or incorporated village lands.
73. Same; acquisition by inheritance, in collection of debts, etc.
74. Same; conveyance by aliens before escheat proceedings.